

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Milpower Source

Vendor City/State: 7 Field Lane
Belmont, NH 03220-4621

Cage: 5YWX2

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

This procurement is for the purchase of 14 internal encapsulated sealed maintenance free lead acid battery packs P/N M359380-5 for use in the Milpower M359-1 Ruggedized high performance 2.0KW, 2.5KVA common cabinet UPS. These batteries will provide full rated power for greater than 5 minutes. These Uninterruptable power supply units will be installed on Columbia/Dreadnaught Class submarines and Milpower is the only qualified source for this unit. The cost of these batteries is [REDACTED] each which makes the total cost [REDACTED]. The estimated delivery time is 245 days, but this quantity of batteries may require [REDACTED] with partial shipments possible. The breakdown on the amount of batteries are as follows: 7 batteries for the US totaling [REDACTED] and 7 batteries for the UK totaling [REDACTED] for a total cost of [REDACTED].

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☐ A. ONLY ONE RESPONSIBLE SOURCE
- ☒ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. **OTHER REASONS.** Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

These batteries are being purchased as replacements/spares for the batteries that are currently in the field, have passed their useful life, and must be the battery designed to fit the common cabinet UPS unit specified above. This battery was designed specifically to fit this UPS and there are no other qualified sources for this specific battery. This part number is also specified in [REDACTED]

[REDACTED] and no substitution is allowed. The alternative to procuring this battery is for the government to refurbish the existing UPS batteries at both [REDACTED] and returns from the fleet at substantial cost to the government. This requirement will be issued as brand name only. Milpower Source is the only contractor to undergo and complete the following qualification testing: Electromagnetic interference/Electro magnetic compatability, shock, vibration, temperature, environmental, electrical testing and physical measuring. These batteries will go into the Milpower M359-1 common cabinet UPS. The purpose of the UPS battery is to power the navigation work station at 126 volts for more than 5 minutes. The Milpower M359380-5 battery is required for the Milpower M359-1 common cabinet UPS's operation. If code [REDACTED] were tasked by [REDACTED] to qualify another source for these batteries, an extensive testing program will need to be devised that would involve electrical, environmental and accelerated aging test plan which would employees over several codes and could cost over [REDACTED]

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

Milpower Source is the only contractor to undergo and complete the following qualification testing: EMI/EMC, shock, vibration, temperature, environmental, electrical testing and physical measuring. These batteries will go into the Milpower M359-1 common cabinet UPS. The purpose of the UPS battery is to power the navigation work station at 126 volts for more than 5 minutes. The Milpower M359380-5 battery is required for the Milpower M359-1 common cabinet UPS's operation.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

[Redacted Signature]

Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

[Redacted Signature]

Contracting Officer Signature

Name (Printed) / Phone #

Date